

No. 03-17-00812-CV

IN THE THIRD COURT OF APPEALS
AUSTIN, TEXAS

FILED IN
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AUSTIN, TEXAS

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AHMAD ZAATARI, MARWA ZAATARI, JENNIFER GIBSTON, JEFFREY D. KYLE, CLERK,
JOSEPH “MIKE” HEBERT, LINDSAY REDWINE, RAS REDWINE IV, and
TIM KLITCH, Plaintiffs – Appellants and Cross-Appellees, and

STATE OF TEXAS, Intervenor – Appellant and Cross Appellee,

v.

CITY OF AUSTIN, TEXAS AND STEVE ADLER, MAYOR OF THE CITY OF
AUSTIN, Defendants – Appellees and Cross-Appellants

Appeal from Cause No. D-1-GN-16-002620
53rd Judicial District Court of Travis County, Texas

UNOPPOSED MOTION TO EXTEND TIME TO FILE REPLY BRIEF

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COUNSEL FOR CROSS-APPELLANTS

TO THE HONORABLE THIRD COURT OF APPEALS:

1. The reply brief of cross-appellants City of Austin and Mayor Steve Adler (together, “City”) is due on June 13, 2018.

2. Pursuant to Texas Rules of Appellate Procedure 38.6(d) and 10.5(b), the City seeks an extension of 20 days to file its reply brief.

3. This extension is sought to allow the City to identify a new attorney to handle the appeal. The City’s current appellate counsel, Michael Siegel, is leaving his position at the City and is unavailable to write the reply brief.

4. This extension is sought in the interest of justice, not for delay, and no party will be prejudiced if this third request for an extension is granted.

5. Appellees do not oppose the requested extension.

PRAYER

For the foregoing reasons, the City requests an extension of time to file its reply brief until July 3, 2018.

Respectfully submitted,

Anne L. Morgan, City Attorney
Meghan L. Riley, Chief, Litigation

/s/ Meghan L. Riley
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Counsel for City Appellants

CERTIFICATE OF COMPLIANCE

I certify that I conferred with counsel for Plaintiffs-Cross Appellants and Intervenor-Cross Appellant concerning the City's request for an extension. Neither party opposes this motion.

\s\ Meghan L. Riley
MEGHAN L. RILEY

CERTIFICATE OF SERVICE

I certify that I served a copy of this motion on counsel of record electronically, in accordance with the Court's rules on electronic filing, on June 11, 2018, as listed below:

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